> 84 **The exact extent of one's loss need not be known before a cause of action can be said to have accrued. Once a plaintiff knows that some damage has occurred and has identified the tortfeasor, the cause of action has accrued.** Neither the extent nor the type of damage need be known. ***Peixeiro v. Haberman***, supra, at p. 557.

[emphasis of bolding alone original; emphasis of bolding and underlining added]

33. The requisite knowledge for discoverability is not one of certainty. The claimant does not need to know the extent of its claim, the precise cause of injury, or even a "thorough understanding" of the facts underlying the cause of action. The claimant only needs to know that some damage has occurred and that the defendant is to blame for the two-year limitation clock to start.

34. Courts have further held that knowledge of the solicitor is imputed to the client, such that the day a party's solicitor knows of or ought to have discovered a potential claim is the day the limitations clock begins to run.[25]

35. Once the date of discoverability is established, the *LAA* provides that the burden of proof shifts to the claimant to show that they filed their claim within the two-year limitation period, as follows:

> 9 (1) A claimant has the burden of proving that a claim was brought within the limitation period established by clause 8(1)(a).
>
> (2) A defendant has the burden of proving that a claim was not brought within the limitation period established by clause 8(1)(b).

36. Therefore, when a summary judgment motion is brought on the basis of the expired limitation period, it is the claimant who bears the burden of proving that they filed their claim within the limitation period, which is supported by both case law and s. 9(1) of the *LAA*.[26] If the claimant cannot prove that the limitation had not expired by the time the claim was filed, then there is no real chance of success and summary judgment should be issued in favour of the moving party.[27]

---

25 *Conrad v Arichat Metal Fabrication Ltd*, 2022 NSSC 278, paras 36-38 [*Conrad*].
26 *Halef v 3104457 US Investments Inc*, 2023 NSSC 65, para 35 [*Halef*].
27 *Halef*, para 36.